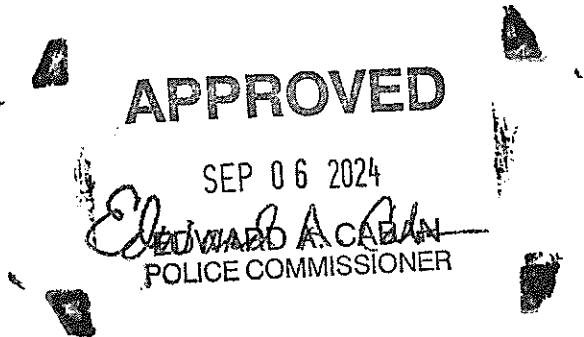


FIRST ENDORSEMENT

Chief Prosecutor APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office June 26, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28313 against Lieutenant David Pabon, Tax Registry No. 939158. This case was conferenced on May 3, 2024.¹, before Assistant Deputy Commissioner of Trials, Vanessa Facio-Lince, who approved the negotiated penalty of a Command Discipline Schedule B and the forfeiture of five (5) vacation days. Charges and Specifications will be dismissed for plea purposes.

Andre D. Applewhite

Andre Applewhite
Chief Prosecutor APU
New York City Civilian Complaint Review Board



¹ The original charges were dated June 1, 2023. The plea agreement was executed on February 21, 2024 and the member of service plead to the original charges on March 15, 2024 before ADTC Anne E. Stone. The plea was for a Schedule B, Command Discipline and forfeiture of five (5) days. The charges were amended to correct the incident address. The substance of the charges remained. The Notice of Amended Charges were served on Lt. Pabon's counsel on March 27, 2024. The parties appeared before ADTC Vanessa Facio-Lince on May 3, 2024. The Lieutenant, with the advisement and aid of counsel, plead to the original Schedule B, Command Discipline a forfeiture of five (5) days, again. ADTC Facio-Lince endorsed the amended plea on the record. The amended plea was executed on May 15, 2024, by all parties merely noting that it was an amended plea to conform with the amended charges, which modified the incident address. The charges and the resolution remained the same.



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28313
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, PABON	FIRST DAVID	M.I.	COMMAND TRANSIT BUREAU DISTRICT 11
SHIELD NO. 00000	TAX REGISTRY NO. 939158	SOCIAL SECURITY NO.		DATE APPOINTED 07/11/2005
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Lieutenant David PABON, on or about February 16, 2022, at approximately 0630, while assigned to NARCBX and on duty, in the vicinity of § 87(2)(b) in Yonkers, NY, Westchester County, Lt. Pabon abused their authority as a member of the New York City Police Department, in that, they entered § 87(2)(b) in Yonkers, NY without sufficient legal authority.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant David PABON, on or about February 16, 2022, at approximately 0630, while assigned to NARCBX and on duty, in the vicinity of § 87(2)(b) in Yonkers, NY, Westchester County, Lt. Pabon abused their authority as a member of the New York City Police Department, in that, they searched § 87(2)(b) in Yonkers, NY without sufficient legal authority.	DISMISSED	
3 . Lieutenant David PABON, on or about February 16, 2022, at approximately 0630, while assigned to NARCBX and on duty, in the vicinity of § 87(2)(b) in Yonkers, NY, Westchester County abused their authority as a member of the	DISMISSED	

DC Bruce

FIRST DEPUTY COMMISSIONER

8/1/24

DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab...

POLICE COMMISSIONER

9/6/24

DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-28313
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, PABON	FIRST DAVID	M.I.	COMMAND TRANSIT BUREAU DISTRICT 11
SHIELD NO. 00000	TAX REGISTRY NO. 939158	SOCIAL SECURITY NO.		DATE APPOINTED 07/11/2005
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
New York City Police Department, in that, they failed to provide § 87(2)(b) with a business card without sufficient legal authority.				

DC Bucca 8/1/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban 9/6/24
POLICE COMMISSIONER DATE